

		subdivision (a) shall be given preference over a case subject to this subdivision. "(c) Unless the court otherwise orders: [¶] (1) A party may file and serve a motion for preference supported by a declaration of the moving party that all essential parties have been served with process or have appeared . . . "(f) Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record. Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party. . . ." Plaintiff has satisfied the requirements of section 36. Plaintiff submits a copy of the signed Order Appointing Guardian Ad Litem, Michaela Miller, which reflects Plaintiff's date of birth and establishes he is four years old. (Ryan Decl., ¶ 2; Exhibit A.) Plaintiff has a substantial interest in this action. Plaintiff is the primary plaintiff who alleges he was injured by Defendant's dog, has asserted causes of action under the Dog Bite Statute (Civ. Code § 3342), among others, and seeks resulting general and special damages for serious physical injuries, emotional trauma, and other economic and non-economic damages. Lastly, all essential parties have been served with process or have appeared in this action. (Ryan Decl., ¶ 3.) Based on the foregoing, the motion for preference is GRANTED. On 7/27/26 the Court shall set a new trial date that will be no more than 120 days from 7/27/26 pursuant to section 36(f).
10	Natural Beaded Rows, LLC v. Owens 2025-01535796 Motion to Strike – Anti SLAPP CMC	Defendant Aniaane Owens' Special Motion to Strike under the Anti-SLAPP Statute is DENIED. <u>Summary of Plaintiff's First Amended Complaint:</u> Plaintiffs Natural Beaded Rows, LLC ("NBR") and ISLA Hair, LLC ("ISLA") operate well-established professional hair-education, certification, and product businesses serving stylists nationwide. (First Amended Complaint ("FAC"), ¶¶ 1-2, 13, pg. 2, 13.) Plaintiff Danielle K. White (White) is the founder, principal, and public-facing educator and brand representative of NBR and ISLA and is widely identified with

	the brands in the professional hair industry. (FAC, ¶ 3, p. 2.) From approximately 2017 through August 2022, Defendant was employed by Plaintiffs as Lead Trainer and Director of Education. (FAC, ¶ 5, pg. 2.) In that senior role, Defendant developed relationships with stylists, educators, and certification participants and was entrusted with Plaintiffs’ confidential stylist lists, certification-participant data, client contact information, and internal business-relationship records— information not publicly available and developed through substantial time and expense. (FAC, ¶¶ 5, 16, pgs. 2, 4.) On or around August 2022, Defendant was terminated from Plaintiffs’ employment. (FAC, ¶ 6.) Leading up to her termination, Defendant accessed, copied, retained, and removed their proprietary stylist and client information and thereafter used or disclosed it in competitive and interfering activities and for the benefit of her own competing business, “Mourning House,” and to disparage Plaintiffs. (FAC, ¶¶ 17, 88, pgs. 4, 16.) Following the termination of her employment in August 2022, Defendant embarked on a deliberate campaign to disparage Plaintiffs and White, motivated by animus and retaliation. (FAC, ¶ 19, pg. 4.) Beginning in or about 2022 through at least 2024, Defendant published false statements about Plaintiffs on multiple online platforms, including Reddit, Facebook groups, TikTok and Instagram posts, that impugned Plaintiffs’ business practices, ethics, legitimacy, and professional integrity. (FAC, ¶¶ 16, 20-21, pgs. 4-6.) The statements were directed to stylists, educators, certification participants, competitors in the stylist community, and prospective business partners of Plaintiffs. (FAC, ¶ 23, pg. 5.) She urged stylists and educators to disengage from NBR’s certification programs breach contracts, and to stop purchasing ISLA products. (FAC, ¶¶ 67, 75, pgs. 13, 15.) Although Defendant may not have directly used defamatory language in every instance, the manner in which she presented her statements, particularly through emotionally charged posts timed with the filing of litigation, conveyed false impressions about White’s conduct, business integrity, and personal character. (FAC, ¶ 44, pg. 9.) NBR’s certification enrollments and ISLA’s hair sales and wholesale engagement declined approximately 75% following the publications and loss substantial profits. (FAC, ¶ 69, pg. 14.) <u>Request for Judicial Notice</u> Plaintiffs’ seek judicial notice of an employment complaint filed on 9/23/24 in <i>Rivera, et al. v. Warrior Management</i>
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	<i>Company, LLC, et al.</i>, Orange County Superior Court Case No. 30-2024-01428343-CU-OE-WJC by Defendant, along with four other former employees, against Warrior Management Company, LLC; Garrett White and Danielle White. (Plaintiffs’ Request for Judicial Notice (“RJN”), Ex. 1.) The complaint alleges several violations of the California Fair Employment and Housing Act (“FEHA”) including sexual harassment, sex discrimination, and pregnancy discrimination (“FEHA Action”). Defendant’s request is granted. (See Evid. Code § 452, subd. (d).) <u>Legal Standard</u> “A cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” (CCP § 425.16(b)(1).) An “act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue” includes: . . . any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or . . . any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest. (Code Civ. Proc. § 425.16(e).) “Section 425.16 posits [] a two-step process for determining whether an action is a SLAPP.” (<i>Navellier v. Sletten</i> (2002) 29 Cal. 4th 82, 88.) “First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity.” (<i>Id.</i>) “A defendant meets this burden by demonstrating that the act underlying the plaintiff’s cause fits one of the categories spelled out in section 425.16, subdivision (e).” (<i>Id.</i>) “If the court finds that such a showing has been made, it must then determine whether the plaintiff has demonstrated a probability of prevailing on the claim.” (<i>Id.</i>) “[I]n order to establish the requisite probability of prevailing (§ 425.16, subd. (b)(1)), the plaintiff need only have ‘stated and substantiated a legally sufficient claim.’” (<i>Navallier, supra</i>, 29 Cal. 4th at p. 88.) “Put another way, the plaintiff ‘must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence
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	submitted by the plaintiff is credited.” (<i>Id.</i> at 88-89.) “Only a cause of action that satisfies both prongs of the anti-SLAPP statute-i.e., that arises from protected speech or petitioning and lacks even minimal merit-is a SLAPP, subject to being stricken under the statute.” (<i>Id.</i>) The anti-SLAPP statute “is to be construed broadly” to protect the valid exercise of constitutional rights. (<i>Crossroads Investors, L.P. v. Federal National Mortgage Assn.</i> (2017) 13 Cal.App.5th 757, 775.) As an initial matter, Plaintiff argues the commercial-speech exemption under § 425.17, subd. (c) removes this action from the anti-SLAPP statute. Defendant argues Plaintiffs’ evidence fails establish each element of the exemption. <u>Commercial Speech Exemption</u> The commercial speech exemption is a “threshold issue” that must be addressed first; if it applies, the anti-SLAPP motion must be denied. (See <i>Xu v. Huang</i> (2021) 73 Cal.App.5th 802, 807.) Section 425.17, subdivision (c) provides that the anti-SLAPP statute “does not apply to any cause of action brought against a person primarily engaged in the business of selling or leasing goods or services ... arising from any statement or conduct by that person” if certain conditions exist. The burden is on plaintiff to show this exemption applies. (<i>Six4Three, LLC v. Facebook, Inc.</i> (2025) 109 Cal.App.5th 635, 647.) “The commercial speech exception has four elements: (1) the cause of action is against a person primarily engaged in the business of selling or leasing goods or services; (2) the cause of action arises from a statement or conduct by that person consisting of representations of fact about that person's or a business competitor's business operations, goods, or services; (3) the statement or conduct was made either for the purpose of obtaining approval for, promoting, or securing sales or leases of, or commercial transactions in, the person's goods or services or in the course of delivering the person's goods or services; and (4) the intended audience for the statement or conduct meets the definition set forth in section 425.17(c)(2).” (<i>Six4Three, LLC, supra</i>, 109 Cal.App.5th at pp. 647–648.) The exemption must be “narrowly construed.” (<i>Simpson Strong-Tie Co., Inc. v. Gore</i> (2010) 49 Cal.4th 12, 22.) Here, Plaintiff has established the commercial speech exemption applies. Defendant is primarily engaged in the business of selling competing hair-education services. (White Decl., ¶ 10.) The statements Plaintiffs challenge are
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	representations of fact about Plaintiffs’ business practices and about the “integrity, safety, and value of the NBR brand and certification programs” and ISLA’s products—that is, about a “business competitor’s business operations, goods, or services.” (FAC, ¶ 21, pg. 5; White Decl., ¶ 12, Exs. B-E.) Defendant made the statements to divert Plaintiffs’ customers to her competing business, urging stylists to disengage from NBR’s certification programs and to stop purchasing ISLA products, by commenting on its business practices and products. (FAC, ¶ 24, pg. 5; White Decl., ¶¶12-13, Exs. B-E.) Defendant directed the statements to existing and prospective students, stylists, and customers of Plaintiffs who are actual or potential buyers of both parties’ services, or persons likely to influence such buyers. (FAC, ¶ 23, pg. 5; White Decl., ¶¶ 12-13). <u>First Prong – Protected Activity</u> Even if the commercial speech exemption does not apply, Defendant has failed to establish Plaintiffs’ claims arise from protected activity. Defendant argues each cause of action arise from her filing and prosecuting the earlier FEHA Action, which she contends is protected under § 425.16, subd. (e)(1) and (2), and from her social media posts, which she contends are protected under § 425.16, subd. (e)(3) and (4). In the opposition, Plaintiff argues Defendant has not shown the causes of action arise from protected activity since this lawsuit pertains to the actions Defendant engaged in against Plaintiffs in their business capacity and is unrelated to the FEHA Action. Regarding the social media posts, Plaintiff argues Defendant’s statements were not made “in connection with” an “issue of public interest”. Defendants bear the burden of demonstrating their alleged speech was protected. (<i>Navellier, supra</i>, 29 Cal. 4th at p. 88.) Section 425.16, subdivision (e) states: “As used in this section, ‘act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue’ includes: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the
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		exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” Defendant has failed to establish any cause of action arises from her filing or prosecuting the prior FEHA Action. “[T]he mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute. Moreover, that a cause of action arguably may have been ‘triggered’ by protected activity does not entail that it is one arising from such. In the anti-SLAPP context, the critical consideration is whether the cause of action is <i>based on</i> the defendant’s protected free speech or petitioning activity.” (<i>Navellier v. Sletten</i> (2002) 29 Cal.4th 82, 89; emphasis in original].) In other words, the speech or petitioning activity itself must be “the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted.” (<i>Wilson v. Cable News Network, Inc.</i> (2019) 7 Cal.5th 871, 884). “When the allegations referring to litigation activity are only incidental to a cause of action based essentially on nonprotected activity, collateral allusions to protected activity should not subject the cause of action to the anti-SLAPP statute.” (<i>Wittenberg v. Bornstein</i> (2020) 50 Cal.App.5th 303, 312–313.) The FEHA Action is a separate lawsuit that pertains to actions Defendant engaged in against Plaintiffs. The FAC merely mentions the FEHA Action twice in passing as context. (See FAC, ¶ 44, pg. 10 [“Although Defendant may not have directly used defamatory language in every instance, the manner in which she presented her statements, particularly through emotionally charged posts timed with the filing of litigation, conveyed false impressions about White’s conduct, business integrity, and personal character.”]’ ¶ 67, pg. 13 [“Publicly made false and harmful statements about the Plaintiffs on TikTok, Reddit, and Facebook forums during the period following litigation”].) Defendant’s social media posts were not made “in connection with” an “issue of public interest” under section 425.16(e)(3)-(4). Under the governing framework, the court first asks what public issue the speech implicates, then asks “what functional relationship exists between the speech and the public conversation about” that issue. (<i>FilmOn.com Inc. v. DoubleVerify Inc.</i> (2019) 7 Cal.5th 133, 149-150.) It is “not enough that the statement refer to a subject of widespread public interest; the statement must in some manner itself contribute to the public debate.” (<i>Id.</i> at p. 150.)
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		The focus is “the specific nature of the speech,” not “generalities that might be abstracted from it,” and a defendant may not rely on a “synecdoche theory” that defines a narrow dispute by its slight reference to a broad public issue. (<i>Id.</i> at p. 152.) Here, to the extent Defendant discussed her prior employment experiences on social media (see, e.g., Owen Decl., ¶ 5), those statements concern a private grievance with a former employer about that employer’s individual business practices. Courts reject precisely this kind of abstraction: “If we were to accept [defendants’] argument that we should examine the nature of the speech in terms of generalities instead of specifics, then nearly any claim could be sufficiently abstracted to fall within the anti-SLAPP statute.” (See <i>Mann v. Quality Old Time Service, Inc.</i> (2004) 120 Cal.App.4th 90, 111 [finding that the “defendant’s alleged statements were not about pollution or potential public health and safety issues in general, but about []’s specific business practices.”].) To the extent Defendant posted about Plaintiffs’ business practices they also fail because they relate to the quality and products of hair extensions and do not present a concern of public interest. (White Decl., ¶¶ 12-13, Exs. B-E.) “Unlawful workplace activity below some threshold level of significance is not an issue of public interest, even though it implicates a public policy.” (<i>Rivero v. American Federation of State, County, and Municipal Employees, AFL-CIO</i> (2003) 105 Cal.App.4th 913, 914–915.) Plaintiffs, who are the subject of Defendant’s statements, operate within a narrowly defined niche—men’s personal development, empowerment, and lifestyle. (Defendant Anianne Owens’ Declaration, ¶ 6.) This is not a large institution, a public figure of broad renown, or an enterprise of widespread public concern. A former employee’s complaints about a single private employer, affecting the speaker and a limited group of individuals, do not constitute a public issue. The mere fact that the statements were posted online does not change this conclusion. The motion is denied. <u>Second Prong – Probability of Success</u> To establish probability of prevailing on the merits, a plaintiff must “state and substantiate a legally sufficient claim ...Put another way, the plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is
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		credited.” (<i>Monster Energy Co. v. Schechter</i> (2019) 7 Cal.5th 781, 791.) “[A] plaintiff’s burden at the second anti-SLAPP step is a low one, requiring only a showing that a cause of action has at least minimal merit within the meaning of the anti-SLAPP statute.” (<i>Id.</i>, at p. 793.) The court does not “weigh credibility [nor]compare the weight of the evidence. Rather, [the court] accept[s] as true the evidence favorable to the plaintiff and evaluate[s] the defendant’s evidence only to determine if it has defeated that submitted by the plaintiff as a matter of law.” (<i>Id.</i> at pp. 791-792.)
11	Golpa v. Daimler AG 2019-01096618 Motion for terminating sanctions, issue and or Evidence Sanctions	Defendants’ Motion for Sanctions is DENIED. On 4/14/25, this Court ordered the parties to conduct the Airbag Control Unit (ACU) inspection pursuant to specific terms within 30 days. Defendant seeks terminating, evidentiary, and/or monetary sanctions against Plaintiff for failure to preserve and produce the ACU. <u>Legal Standard:</u> Code of Civil Procedure section 2023.030 provides in part as follows: “To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: (a) The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (b) The court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. The court may also